Objective Legal Writing Handbook

A Comprehensive Guide for Law School and Practice

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Preface

This handbook provides comprehensive guidance for objective legal writing in law school. It synthesizes principles from plain English authorities, memo structure conventions, case illustration techniques, citation standards, and statutory interpretation methods.

Law School vs. Practice

Law school writing emphasizes thoroughness and demonstrates analytical reasoning. Practice writing prioritizes brevity and efficiency.

- **Law School**: Exhaustive analysis showing both sides; detailed case illustrations; full CREAC structure; demonstrate you know the law.
- **Practice**: Concise memos; bottom-line answers first; abbreviated analysis for clear issues; tell the partner what they need to know.

Adapt techniques to your audience. A partner wanting a quick answer differs from a professor evaluating analytical depth.

The Professional Model

Think of the classroom as a law office:

- Students = New associates
- Teaching Assistants = Senior associates
- Professor = Law partner

Expect to write, revise, proofread, then proofread again.

I. Core Principles of Legal Writing

Legal writing serves a singular purpose: clear communication of legal analysis to a specific audience.

A. The Rhetorical Triangle

Every writing decision flows from three considerations:

1. **Audience**: Who reads this document? A supervising partner wants efficiency. A professor wants demonstrated reasoning. A judge wants clarity and accuracy.
2. **Purpose**: What should the document accomplish? Predict an outcome? Persuade? Inform?
3. **Speaker/Writer**: How do you want to be perceived? Establish credibility through conventions and precision.

B. Objective Legal Analysis Defined

Objective legal analysis is:

- Neutral assessment
- Predicts most likely outcome (predictive writing)
- Overt discussion of strengths and weaknesses
- Often includes recommended next steps

C. Six Tools for Clear Writing

1. **Use Short Sentences.** Generally keep sentences to twenty words or fewer. This is a guideline, not a rule. Some sentences

will be longer, but they should contain no folds, vaguenesses, or parenthetical interruptions.

2. **Prefer Active Voice.** The subject should perform the action at the beginning of the sentence.
3. **Use Strong Verbs.** Avoid nominalizations, verbs turned into nouns.
4. **Avoid Intrusive Phrases.** Keep subject, verb, and object together.
5. **Use Transitional Words.** Guide the reader through your analysis.
6. **Use Simple Words.** Prefer plain language over complex alternatives.

D. The Magic Formula

Agent + Action = Clear Writing

Put the agent (subject) up front and use an action verb so the agent is doing something.

> Active voice + Action verbs = Clear writing
>
> Passive voice + Nominalizations = Wordy writing

E. Active vs. Passive Voice

Active Voice: Subject → Verb → Object

> The attorney argued the motion.

Passive Voice: Object → Verb → Subject

The motion was argued by the attorney.

Why prefer active voice? The reader expects the subject first. Passive voice forces mental backtracking and creates ambiguity through implicit agents.

Passive with Implicit Agent (Avoid):

An opinion was issued later that month. *(Who issued it?)*

Active with Explicit Agent (Prefer):

The court issued an opinion later that month.

Exceptions Where Passive Voice Works:

1. **Unknown Actor**: "Mr. Smith was murdered late last night."
2. **Linking Old and New Information**: "The court issued a clear opinion stating that all Michigan prosecutors must follow the new disclosure procedures. But the new procedures were ignored by many prosecutors in remote counties."
3. **Purposeful De-emphasis**: When you want to minimize the actor's role.

Active voice does not prevent introductory phrases or transitions:

In its opinion, the court listed the elements of a negligence claim.

Moreover, the court listed the elements of a negligence claim.

F. Nominalizations

A nominalization turns a verb into a noun, weakening prose and adding unnecessary words.

Nominalization (Avoid)	Strong Verb (Prefer)
make reference	refer
effectuate service	serve
is dependent upon	depends on
is applicable	applies
make a determination	determine
reach a decision	decide
initiate commencement	begin
conduct a review	review
the appearance of	appeared

Spotting Nominalizations: Look for endings: -able, -ment, -ant, -ence, -ion, -ent, -ancy, -ency, -ance, -ity.

Example:

> **Before**: A decision was made by the Board to conduct a review of the file. (14 words, passive, two nominalizations)
>
> **After**: The Board decided to review the file. (7 words, active, strong verbs)

G. Intrusive Elements

Intrusive elements separate subject from verb or verb from object, confusing the reader.

Short Intrusive Element:

Before: This agreement, unless revocation has occurred at an earlier date, will expire on November 1, 2024.

After: Unless previously revoked, this agreement will expire on November 1, 2024.

Long Intrusive Element:

Before: A claim, which in the case of negligent misconduct must not exceed $500, and in the case of intentional misconduct must not exceed $1,000, may be filed with the Office of the Administrator by any injured party.

After: Any injured party may file a claim with the Office of the Administrator. A claim must not exceed $500 for negligent misconduct nor $1,000 for intentional misconduct.

H. Transitions

Transitions guide the reader through your analysis. Prefer short, simple transitions: and, but, so, because, still, yet.

Function	Transitions
Adding	and, also, too, besides, moreover, furthermore, in addition
Summarizing	so, therefore, thus, consequently, in short, accordingly
Illustrating	for instance, for example, such as, specifically
Comparing	similarly, likewise, in the same way
Contrasting	in contrast, on the other hand, rather
Conceding	admittedly, granted that, of course, no doubt
Reversing	but, however, on the contrary
Returning	still, yet, nevertheless
Restating	in other words, that is
Stating Reason	because, since, for (do not use “as” for “because”)
Sequencing	first, second, third, next, finally

I. Words to Avoid

Inflated Language:

Avoid	Use	Avoid	Use
accede to	grant	in lieu of	instead of
adjacent to	near	provided that	if
approximately	about	pursuant to	under
commence	begin	subsequent to	after
disseminate	distribute	prior to	before
encounter	meet	utilize	use

Lawyerisms (Never Use):

- Hereinafter, heretofore, aforesaid
- Now comes, said (as in “said contract”)
- Wherein, wherefore, arguendo

Wordy Phrases:

Avoid	Use
for the purpose of	to
for a period of	for
because of the fact that	because
with the exception of	except
in the event that	if
for the reason that	because
it should be noted that	(delete)
I would argue that	(delete)

II. Grammar Essentials

Precision in grammar builds credibility. Errors undermine trust in your analysis.

A. That vs. Which

- **That**: Introduces restrictive clauses (essential to meaning). No comma.
- **Which**: Introduces non-restrictive clauses (additional information). Comma required.

  The statute **that** applies here requires notice. (Identifies which statute)

  The statute, **which** was enacted in 2020, requires notice. (Adds information)

B. Who vs. Whom

- **Who**: Subject of a verb.
- **Whom**: Object of a verb or preposition.

  The attorney **who** filed the motion... (subject of “filed”)

  The witness **whom** the attorney questioned... (object of “questioned”)

C. Subject-Verb Agreement

Keep subject close to verb. Intervening phrases do not change the subject's number.

> The collection of documents **was** admitted. ("Collection" is singular)
>
> The documents in the collection **were** admitted. ("Documents" is plural)

D. Pronoun Reference

Court Reference: Use "it" for a court as an institution.

> The court issued **its** opinion.

Unidentified Persons: Use "they/their" for singular unidentified persons, or rephrase.

E. Fewer vs. Less

- **Fewer**: Countable items (fewer cases, fewer witnesses).
- **Less**: Volume, amount, or degree (less evidence, less time).

F. "Only" Placement

Move "only" nearest to the item you want to modify.

> I will **only** study if there is a test. (Means: I won't do other things to prepare)

I will study **only** if there is a test. (Means: If no test, I won't study)

G. Split Infinitives

Generally avoid splitting "to" from the verb, unless avoiding creates awkwardness.

Split: Johnny wanted Dee to proudly stand up for herself.

Better: Johnny wanted Dee to stand up for herself, proudly.

H. Avoiding Common Errors

1. **"It is" and "There is"**: Avoid grammatical expletives at sentence starts.

   Before: There is a requirement that notice be given.

   After: The statute requires notice.

2. **Dangling Modifiers**: Ensure modifying phrases attach to the correct subject.

   Wrong: Having filed the motion, the court granted relief.

   Right: Having filed the motion, the attorney obtained relief.

3. **Comma with Coordinating Conjunctions**: Two independent clauses connected with a coordinating conjunction require a comma.

Correct: My students are incredibly intelligent, and they work hard too!

Also Correct: My students are incredibly intelligent and work hard too! (compound predicate, no comma needed)

4. **Alleged vs. Testified**: This distinction matters legally. “Alleged” refers to claims; “testified” refers to evidence presented under oath.

III. Reading Legal Opinions

Before writing about cases, you must read them effectively.

A. Active Reading Strategies

1. **Get Context First**: Refrain from highlighting on the first read. Understand the big picture before focusing on details.
2. **Make a Party Chart**: Track who won and lost at each level.

Court	Role	Party	Outcome
Trial Court	Plaintiff	Injured Driver	Won
	Defendant	Dog Owner	Lost
Court of Appeals	Appellant	Dog Owner	Lost
	Appellee	Injured Driver	Won

3. **Read with a Purpose**: Your purpose shapes what you extract. Reading as a babysitter differs from reading as general counsel.
4. **Embrace Ambiguity**: The best law students recognize and identify unsettled issues without pretending they are easy. Rather than filling ambiguity with false certainty, embrace it.

B. Key Distinctions in Case Reading

Term	Definition
Rule	Pure law; the principle the opinion will stand for in future cases
Holding	Law applied to the facts of the case before the court
Reasoning/Rationale	The "why" of the holding; helps determine applicability to your case
Judgment/Disposition	What the court says should happen next; the action taken
Dicta	Statements not necessary to the holding; persuasive but not binding

C. Directed Verdict vs. Jury Verdict

- **Directed Verdict**: By the judge; verdict on the law (one party failed to prove their case as a matter of law)
- **Jury Verdict**: By the jury; verdict on the facts

IV. Sources of Legal Authority

Understanding authority hierarchy is essential for effective legal analysis.

A. Primary vs. Secondary Authority

Type	Created By	Examples
Primary	Government	Constitutions, statutes, regulations, case law, executive orders
Secondary	Scholars/Commentators	Treatises, law reviews, legal encyclopedias, restatements

B. Mandatory vs. Persuasive Authority

- **Mandatory Authority**: Law from within the governing jurisdiction; always primary; binding on the court.
- **Persuasive Authority**: Primary law from other jurisdictions; dicta from your jurisdiction; secondary authority. May be considered but not binding.

C. Stare Decisis and Precedent

Stare decisis requires lower courts to follow decisions of higher courts when:

- The higher court addressed the same issue
- The courts are in the same jurisdiction

This doctrine:

- Transforms individual cases into law
- Creates consistency and fairness
- Creates predictability

Vertical Stare Decisis: Higher court decisions are mandatory for lower courts within that jurisdiction.

Horizontal Stare Decisis: Courts generally follow their own prior decisions but may overrule them.

D. Court Hierarchy

Federal System:

1. U.S. Supreme Court (highest)
2. Circuit Courts of Appeals (13 circuits)
3. District Courts (trial courts)

State Systems: Generally mirror federal structure (Trial Court → Intermediate Appellate Court → Highest Court), though some states have only two tiers.

E. Common Law

Common law is an area of law created wholly from judicial decisions, in other words, created in the ABSENCE of a statute. All case law includes common law, but common law is a subset of case law.

V. Statutory Interpretation

When statutes govern your client's issue, you must interpret them correctly.

A. Preliminary Steps

1. **Read the Statute**: The text is always the starting point. Your initial understanding may not be the only plausible interpretation.
2. **Understand Client's Goals**: Know what outcome the client needs.
3. **Confirm Good Law**: Shepardize or KeyCite to determine if the statute has been repealed, amended, or interpreted by courts.

B. Close Reading of Statutes

Read statutes actively. For example, Florida Statute ğ 767.01:

> Owners of dogs **shall be liable** for **any damage** done by their dogs (1) to a **person** or (2) to any **animal**...

Questions to ask:

- "Shall be liable" = Strict liability (not negligence)
- "Any damage" = How broad?
- "Done by" = Does the dog need to make contact?
- If unclear from statute, turn to case law

C. Four Categories of Interpretation Tools

A. Statutory Text:

- Statutory definitions (check definitions section)
- Plain meaning (ordinary understanding)
- Dictionary definitions
- Common law definitions
- Commonly used terms (and/or, may/shall, unless/except)

B. Legal Interpretations:

- Judicial interpretations (case annotations, Shepardizing)
- Agency interpretations (regulations in CFR)

C. Context and Structure:

- Cross-references and companion statutes
- Whole Act Rule (construe as a whole)
- Presumption of consistent usage

D. Purpose:

- Preamble or purpose clauses
- Legislative history (committee reports, floor statements)

D. Key Canons of Construction

Canon	Meaning
Omitted-Case	Nothing added beyond what text states or implies
General-Terms	General terms given full scope without arbitrary limits
Negative-Implication	Expression of one thing excludes others
Nonexclusive "Include"	"Include" introduces examples, not exhaustive list
Rule of Lenity	Ambiguity in criminal statutes resolved for defendant
Whole Act Rule	Text construed as a whole
Consistent Usage	Same word bears same meaning throughout
Avoid Surplusage	Every word should have effect; none ignored
Ejusdem Generis	General words after enumeration apply to same class
Related-Statutes	Statutes on same subject interpreted together

E. Commonly Used Statutory Terms

Term	Function
And vs. Or	"And" = conjunctive (all required); "Or" = disjunctive (any one sufficient)
May vs. Shall	"Shall" = mandatory; "May" = discretionary
Unless/Except	Signify exceptions
Subject to	Indicates limitation by another section
Notwithstanding	"In spite of"; not controlled by other provisions

F. Three Theories of Interpretation

1. **Textualism**: Meaning from text alone; reject extratextual sources like legislative history.
2. **Intentionalism**: Focus on legislative intent; consult legislative history to determine what Congress meant.

3. **Pragmatism**: Balance factors to reach the best result; consider real-world consequences.

VI. The Legal Memorandum

The objective memorandum predicts legal outcomes. It requires neutrality, precision, and thoroughness.

A. Five Parts of the Office Memorandum

1. Question Presented
2. Brief Answer
3. Statement of Facts
4. Discussion
5. Conclusion

B. Know Your Client Process

Before writing:

1. Know your client and their situation
2. Understand the legal question
3. Research thoroughly (make choices, read critically, weed out irrelevant)
4. Organize your analysis
5. Draft and revise
6. Edit and polish

C. Question Presented

The Question Presented frames the legal issue using your client's facts. It should be neutral and include trigger facts.

Three Required Parts:

1. Brief description of the governing law and jurisdiction
2. The precise legal question
3. The two to three most determinative facts

Method 1: Under/Does/When Format

> **Under** [controlling law and jurisdiction], **does** [legal question occur] **when** [key trigger facts]?

Example:

> Under section 767.01, Florida Statutes (2021), which holds dog owners liable for any damage done by their dogs to a person, can an injured skateboarder bring a claim against either dog owner when the first dog lunged at and hit a second dog causing the second dog to fall into the path of the skateboarder, who then crashed and sustained injuries?

Method 2: Statements and a Question

> [Describe determinative facts in chronological order]. [Describe controlling law]. [Pose legal question].

Example:

> A dog lunged at and hit a second dog, causing the second dog to fall into the path of a skateboarder. The skateboarder swerved to avoid the dog and crashed into a wall, injuring his shoulder. Under section 767.01, Florida Statutes (2021), which holds dog owners liable

> for any damage done by their dogs to a person, can the skateboarder bring a claim against either dog owner?

QP Requirements:

- Contains legal authority, legal issue, and key facts
- Does NOT use client names (use descriptive roles)
- Includes trigger facts for BOTH contested elements
- Focus must be clear; all essential information included

D. Brief Answer

The Brief Answer provides a direct response followed by brief reasoning. It should be parallel to the Question Presented.

Structure:

1. State the answer concisely and visibly (Yes/No/Likely/Probably)
2. Include degree of certainty
3. State the synthesized rule on which your answer turns
4. Link answer to QP using only the most important reasons

Example:

> Yes, the first dog's owner is likely liable; however, the second dog's owner is not likely liable. A dog owner is strictly liable under section 767.01 when a dog's affirmative act is the but-for cause of a person's injuries and substantially contributes to the injury in a natural and continuous sequence of events, even if there is no

physical contact between the dog and the injured party. Intervening causes will not negate liability unless they are overwhelming or superseding. The first dog's owner is likely liable because his dog acted affirmatively, lunging and hitting the second dog, setting off a continuous sequence of events resulting in the injury. The second dog's owner is not likely liable because his dog did not take an affirmative act; rather, the dog froze and remained passive throughout the incident.

BA Requirements:

- Begins with clear answer including degree of certainty
- States rules/sub-rules accurately
- Answers the QP (parallel structure)
- Does NOT use client names
- No citation necessary

E. Statement of Facts

The Statement of Facts presents all legally relevant facts neutrally.

Requirements:

1. Introduces and labels the players (throughout or in intro paragraph)
2. Includes ALL trigger facts (determinative + potentially impactful)
3. Focuses on legally significant facts
4. States facts in logical order (chronological usually best)

5. Includes procedural posture and key unknowns (if any)
6. Reads like a story
7. Uses PAST TENSE for past events

Common Errors:

- Missing key trigger facts
- Using present tense for past events
- Assuming facts not in the record
- Failing to state unknowns at end of SOF
- Including irrelevant facts

Tips:

- Say where you got the facts (“According to our client...”)
- Note that errors or omissions could change the prediction
- Be precise: avoid factual mistakes

VII. The Discussion Section: Introductory Roadmap

The Introductory Roadmap orients the reader before detailed analysis.

A. Five Components

1. **Conclusion to Client's Legal Question**: State with degree of certainty, answering the call of the question.
2. **Rule(s) Explanation**: Discuss the governing/global rule fully with identification of all elements. May briefly explain how sub-rules relate.
3. **Disposal of Uncontested Elements**: Use facts to prove they are uncontested.
4. **Refocus on Contested Elements**: Direct the reader to what the memo will assess.
5. **Conclude Again**: If the roadmap is longer than half a page, include a tight conclusion.

B. Example Introductory Roadmap

> Morse is likely to be found liable for carjacking. Under Florida law section 812.133(1), (3)(b), Florida Statutes (2022), a person is liable for carjacking if the person is found taking a motor vehicle from the person or custody of another, with intent to either permanently or temporarily deprive the owner of the motor vehicle, when in the course of the taking there is the use of force, violence, assault, or

putting in fear. An act shall be deemed "in the course of the taking" if it occurs either prior to, contemporaneous with, or subsequent to the taking, and if it and the act of taking constitute a continuous series of acts or events. ğ 812.133(3)(b).

If the person does not drive away in the car, the act of taking the keys establishes carjacking. *Price v. State*, 816 So. 2d 738, 741 (Fla. 3d DCA 2002). If the victim has reason to fear the actor, it is considered "putting in fear." *Williams v. State*, 863 So. 2d 1257, 1258 (Fla. 4th DCA 2004).

Here, Morse stated he aimed to "pull up to tonight's party" in the car, satisfying the intent element. The contested elements are whether Morse's conduct establishes (1) "taking" under section 812.133 and (2) "putting in fear" sufficient to support liability.

C. Key Points

- Cite case law in the Introductory Roadmap, do not leave citation to chance
- Derive sub-rules from statutory definitions, statutory inferences, case law, or combinations
- Show why uncontested elements are uncontested using the available facts

VIII. CREAC Analysis Structure

CREAC provides the analytical framework for each contested element in the Discussion section.

A. CREAC Overview

- **C**: Conclusion (Point Heading)
- **R**: Rule
- **E**: Explanation (Case Illustrations)
- **A**: Application
- **C**: Conclusion (Robust)

Each contested element receives its own CREAC section.

B. Point Headings (Initial Conclusion)

Point headings state your conclusion on ONE contested element and guide the reader.

Requirements:

- Conclusion as to ONE contested element
- Include reasoning: “because [law] + [key trigger facts]”
- Single sentence, no more than three lines
- Bold font, sentence case
- Include degree of certainty

Example:

> **A. Walcott would likely not be shown as disposing of the stolen property or intending to dispose of property simply because she attached the stolen property to her car and sold items before.**

Common Errors:

- Focusing on more than one contested issue per heading
- Omitting degree of certainty
- Framing in terms of appellate reversal rather than conviction

C. C1: Initial Conclusion

Because you have a point heading, the first C of your CREAC can be tighter, but it must still be included.

Requirements:

- Includes degree of certainty
- Stated in logical and concise manner
- Generally no more than one sentence

Example:

> Consequently, by buying the property well below market value, the buyer-merchant might show requisite knowledge for conviction but likely not the intent to sell, as there was no property transfer.

D. R: Rule Section

The Rule section states the legal standard governing the element.

Requirements:

- May include governing rule (sometimes tighter if already in roadmap)
- Includes FULLEST statement of sub-rules for this CREAC
- Give ALL rules here BEFORE moving to E (case illustrations)
- Drafted clearly and concisely
- Does NOT mention client ("client-free zone")
- State rules WITHOUT hedging, degree of certainty belongs in conclusions, not rules

Key Distinctions:

- **Rule**: Pure law; applies to future cases
- **Holding**: Law applied to specific facts
- **Implicit Rule**: What the court DID, not just what it stated

Example:

> Under section 812.019, Florida Statutes, any person who traffics in, or endeavors to traffic in, property that they know or should know was stolen must be guilty of a felony of the second degree. Under section 812.012(8), Florida Statutes, to traffic in stolen property is, among other things, to dispose of that property or to obtain such property with an intent to dispose of it. Placing property

in the buyer's car does not show disposal. *Lancaster v. State*, 369 So. 2d 687, 688 (Fla. 1st DCA 1979). Previous selling does not necessarily prove intent to dispose of newly acquired stolen property. *Townsley v. State*, 443 So. 2d 1072, 1074 (Fla. 1st DCA 1984).

IX. Case Illustrations (The "E" in CREAC)

Case illustrations show how courts apply the rule. They are case briefs with a purpose.

A. Purpose of Case Illustrations

1. Clarify rules
2. Prove the rules exist
3. Foreshadow application to your client's case

Think of case illustrations as a bank account: **Deposit all the law (including reasoning) you will want to use to compare to your client's case.**

B. H-FIHR Framework

- **H**ook: Tell the reader why the case matters. Use the legal principle (rule or holding).
- **F**acts: Most important triggering story facts + key procedural facts.
- **I**ssue: Key legal question the court addressed.
- **H**olding: Court's answer given the facts. ("Ruled," "held," "found...")
- **R**easoning: Why the court reached its decision. Policy, boundaries, fairness.

Mnemonic: "Horses Fart In Hot Rooms"

C. H-FIHR Requirements

Hook:

- Generally use rules (but holdings work too per textbook 7.2)
- If ALL law for your CREAC comes from ONE case AND hook-rule would be identical to CREAC Rule, you may start with facts instead
- If CREAC Rule comes from multiple cases, include hook-rules

Facts:

- Include triggering story facts
- Procedural facts may be eliminated or tightened if not helpful
- Use PAST TENSE

Issue:

- May be eliminated if tight on space AND holding tracks rule thoroughly

Holding:

- Track ALL parts of the rule
- Use “does/under/when” formulation

Reasoning:

- Look for policy reasoning
- Include reasoning related to the case-at-hand
- Explain what the court rejected and why

D. Case Illustration Rules

1. **Past Tense**: Case illustrations are past tense, EXCEPT for rules in the hook.
2. **No Proper Names**: Do not use names (“Mr. Bluesky”) or case roles (“Petitioner”). Use labels or real-world roles: patron, dog owner, driver, buyer, injured party.
3. **No Client Mention**: Do not mention your client in case illustrations.
4. **Avoid Common Litigants**: When using short-form citations, avoid using the name of a common litigant (Bluebook Rule 10.9).

E. Example Case Illustration

Placing property in the buyer’s car does not show disposal under section 812.019(1). In *Lancaster*, the buyer put stolen property in his vehicle. The buyer knew the property was stolen. The buyer was charged and convicted of dealing in stolen property. On appeal, the buyer argued that placing stolen property inside his car does not show liability for trafficking. The court reversed the trafficking charges because placing the stolen property in the vehicle was not the same as disposing of the stolen property.
The court found that intent to traffic the stolen property by disposing of it by transfer to another is essential.
The qualifying words “with the intent to sell, transfer, distribute, dispense, or otherwise dispose of such property”

modify not only “use” but also “buy, receive, possess, or obtain control of.”

F. Multiple Case Illustrations

You will likely need more than one case illustration per CREAC. Consider:

- Additional fairly full H-FIHRs
- Cropped case illustrations (abbreviated versions)
- Parenthetical citations
- String citations with clarifying signals

Cases illustrated in CREAC 1 are not repeated in full in CREAC 2, though they may be referenced as needed.

X. Application (The "A" in CREAC)

The Application section connects the rule and case illustrations to your client's facts.

A. PCW Format

- **P**oint: Lead with factual point of comparison or theme sentence (NOT by case name)
- **C**omparison: Fact-to-fact comparison to your client's case
- **W**hy: Legal significance of the comparison

B. Application Requirements

1. **Uses Analogical Reasoning**: Compare facts from case illustrations to client's facts.
2. **Lead with the Factual Point**: Start with the factual comparison rather than "In *Lancaster*..."
3. **Explicit Comparisons**: Use "Just like... here..." or "Unlike... here..."
4. **Reincorporate Client Facts**: Do not count on the reader to remember, bring facts back into the application.
5. **Explain Why**: Give the legal significance of each comparison.
6. **Organized by Element**: Address one element at a time.
7. **Not Equal Weight**: Some cases may warrant detailed comparison; others only passing mention.
8. **Uses the Facts**: Ground every assertion in specific facts.

C. Comparison Structures

Analogy:

> Just like the buyer in *Lancaster* who put the stolen property inside his car, Walcott attached the bicycle to her car. In *Lancaster*, the court did not find that putting stolen property in a personal car was enough to show trafficking. Here, too, Walcott's actions are unlikely to establish liability.

Distinction:

> Unlike the buyer in *Blackmon* who sold the stolen property shortly after obtaining it, Walcott has not transferred the bicycle to anyone. Because Walcott did not dispose of the property, she is unlikely to be found liable for trafficking.

D. Running the Numbers

When analysis involves numerical comparisons, run the numbers explicitly.

> In *Townsley*, the defendant purchased the item for 27% of fair market value, and the court found this price indicated knowledge the item was stolen. Here, Walcott purchased the bicycle for $750, which represents 75% of the lowest price she had seen advertised for a used model ($1,000). Unlike the 27% in *Townsley*, Walcott's 75% falls within

the reasonable range for used goods and does not indicate knowledge of theft.

E. Counter-Arguments

Address the opposing side's arguments, but only if they have reasonable merit.

Structure:

1. State the counter-argument
2. Acknowledge any strength
3. Explain why it fails or is outweighed
4. Resolve in favor of your prediction with consistent degree of certainty

Example:

> The State may argue that Walcott's statement, "Even if I don't keep it, I'll be able to sell it and make a lot of money!", demonstrates intent to traffic. However, this statement is conditional and does not establish definite intent to dispose. Walcott testified that she decides whether to keep or sell items only after restoration is complete. This conduct is consistent with personal use, not trafficking. Courts have held that simply proving an individual purchased stolen property is not enough to support a conviction for dealing in stolen property. *Canady*, 73 So. 3d at 787.

F. Rule-Based Reasoning

Use rule-based reasoning where analogical reasoning is not feasible or where it provides a clearer answer.

> Under section 812.022(3), possession of stolen property bought well below fair market value, unless satisfactorily explained, gives rise to an inference that the buyer knew or should have known the property was stolen. Here, Walcott purchased the bicycle for $750, below the lowest price of $1,000 she had seen. This price differential may support an inference of knowledge under section 812.022(3).

XI. Conclusions

A. CREAC Conclusion (C4: Robust Conclusion)

The final C of each CREAC is the most robust conclusion.

Requirements:

- Flows logically from R, E, and A
- Includes degree of certainty
- Functions as a mini-closing argument
- Generally a few sentences
- Re-references trigger facts + conclusion + primary reasons

Example:

> Walcott is likely not liable for dealing in stolen property as to the trafficking element. She did not transfer the property to another, and her statement about possibly selling the bicycle does not establish definite intent to dispose. Just because she sometimes sells similar items does not mean she intended to sell this particular bicycle. The State would have to show that she disposed of or intended to dispose of the property by transferring it. Courts require proof of actual disposition or clear intent to dispose, not mere possibility. *Lancaster*, 369 So. 2d at 688; *Townsley*, 443 So. 2d at 1074.

B. Memo Conclusion

The final Conclusion of the entire memo should be succinct.

Requirements:

- Very succinct bottom-line with degree of certainty
- Offers real-world considerations
- Does NOT tell supervising attorney what to do
- May suggest or draw attorney's attention to something

Example:

> Walcott will likely not be convicted of dealing in stolen property because she does not seem to explicitly show the element of intent to dispose of the stolen property. Still, her criminal history and statements will play a role in the trier of fact's decision.

XII. Citations and Bluebook Signals

Proper citation builds credibility and allows readers to verify your analysis.

A. When to Cite

- Every rule statement requires a citation
- Every case illustration requires citations
- Cite in the Introductory Roadmap, Rule section, and Explanation section
- Do not leave citation to chance
- Cite case law, not just statutes

B. Citation Formats

Follow Florida Rule of Appellate Procedure 9.800 or Bluebook 21st ed. (as directed by professor).

Key Rules:

- Underline case names (do not italicize in court documents)
- Italicize case names in law review articles
- Use section symbol (ğ) with space before number: ğ 767.01
- Two spaces between sentences

C. Introductory Signals

Signals indicate how citations relate to your proposition. They are shorthand for telling the reader why you included the citation.

Four Families of Signals:

1. Signals that indicate support
2. Signals that indicate comparison
3. Signals that indicate contradiction
4. Signals that indicate background material

Signals Indicating Support

No Signal: Source directly supports your proposition (quote, paraphrase, or identification).

> The Eighth Amendment forbids prison officers from being deliberately indifferent to a prisoner's serious medical needs. *Estelle v. Gamble*, 429 U.S. 97, 104 (1976).

See: Source clearly but indirectly supports proposition. Also used when citing to a case in client-based writing.

> It is important to provide prisoners with proper medical care. *See Estelle v. Gamble*, 429 U.S. 97, 104 (1976).
>
> Because our client has a serious medical need, he is entitled to treatment. *See Estelle v. Gamble*, 429 U.S. 97, 104 (1976).

E.g.,: (1) Source directly supports proposition AND (2) other sources also support but are not cited.

> The Eighth Amendment is a broad protection that goes beyond prohibiting only direct, physical punishments. *E.g., Estelle v. Gamble*, 429 U.S. 97, 104 (1976).

Can be combined: *see, e.g.,* (preceded by italicized comma, followed by non-italicized comma).

Accord: Two or more sources support proposition, but text quotes or refers to only one. Often used for law of different jurisdictions aligning.

> The Second Circuit has held that a dental cavity may qualify as a serious medical need. *Harrison v. Barkley*, 219 F.3d 132, 137 (2d Cir. 2000); *accord Formica v. Aylor*, 739 F. App'x 745, 756 (4th Cir. 2018).

See also: Source supports proposition, but less directly or forcefully than "see." Often follows stronger citations. Generally requires explanatory parenthetical.

> *Estelle v. Gamble*, 429 U.S. 97, 104 (1976); *see also* Jonathan Simon, *From Health to Humanity*, 25 Fed. Sent'g Rep. 276, 277 (2013) (tracing development of dignity in Eighth Amendment context).

Cf.: Source supports analogous proposition. Requires explanatory parenthetical.

> A broken leg qualifies as a serious medical need. *Cf. Burgos v. Philadelphia Prison System*, 760 F. Supp. 2d 502, 508

> (E.D. Pa. 2011) (holding broken arm qualifies as serious medical need).

Signals Indicating Comparison

Compare... with: Sets up comparison illustrating your proposition. Use commas before "with" and "and."

> The circuits are split as to what test determines a serious medical need. *Compare Mahan v. Plymouth Cty. House of Corrections*, 64 F.3d 14, 18 (1st Cir. 1995) (test one), *with Colwell v. Bannister*, 763 F.3d 1060, 1066 (9th Cir. 2014) (test two).

Signals Indicating Contradiction

Contra: Source directly contradicts your proposition. Rare in practice documents.

But see: Source indirectly supports a contrary proposition.

But cf.: Source supports a proposition analogous to a contrary proposition.

Signals Indicating Background

See generally: Provides background material. Often with secondary sources. Requires explanatory parenthetical.

> The recognition that the Constitution protected prisoners signaled a change in jurisprudence. *See generally* Philip M.

> Genty, *Confusing Punishment with Custodial Care*, 21 Vt. L. Rev. 379 (1996) (discussing Court's shift).

D. Multiple Signals in One Citation

Order: Signals appear in the order listed in Bluebook Rule 1.2.

Separation:

- Citation sentence: Signals of same family separated by semicolons; different families separated by periods.
- Citation clause: All signals separated by semicolons.

Template:

> Proposition. Source A; *see* Source B; *accord* Source C; *see* Source D; *see also* Source E; *cf.* Source F. *Compare* Source G, *and* Source H, *with* Source I. *Contra* Source K; *see* Source L. *See generally* Source N.

E. Signals as Verbs in Footnotes

Signals can be used as verbs in footnotes to integrate information. When used as verbs, signals are NOT italicized.

> For a discussion of the Court's shift, *see generally* Philip M. Genty, *Confusing Punishment with Custodial Care*, 21 Vt. L. Rev. 379 (1996).

XIII. Parenthetical Explanations

Parentheticals explain the relevance of a citation. They are phrases in parentheses at the end of a citation.

A. When Parentheticals Are Required or Encouraged

Signal	Parenthetical	Reason
See also	Encouraged	Relevance may not be obvious
See generally	Strongly recommended	Background source needs explanation
Cf.	Strongly recommended	Analogy needs explanation
Compare...with	Strongly recommended	Comparison needs context
But cf.	Strongly recommended	Contrary analogy needs explanation

B. How to Phrase Parentheticals

Parentheticals generally begin with a present participle (verb ending in -ing). The first word is NOT capitalized unless it begins a complete quoted sentence.

Examples:

> *De Long v. Hennessey*, 912 F.2d 1144, 1147 (9th Cir. 1990) (remanding pre-filing injunction for failure to show filings were numerous).
>
> *United States v. Neal*, 101 F.3d 993, 997 (4th Cir. 1996) ("Indirect contempt may never be punished summarily, but rather requires adherence to more normal adversary procedures.").

C. Order of Multiple Parentheticals

When a citation has multiple parentheticals, follow this order:

1. Date
2. Hereinafter short name
3. En banc
4. Judge name (concurring/dissenting)
5. Plurality opinion, per curiam
6. Alteration in original, emphasis added
7. Footnote omitted, citations omitted
8. Quoting/citing another source
9. Internal quotation marks omitted
10. URL
11. Explanatory parenthetical
12. Prior or subsequent history

D. Effective Uses of Parentheticals

1. **Explaining Related Authority**:

   District of Columbia v. Heller, 554 U.S. 570, 595 (2008); *see also McDonald v. City of Chicago*, 561 U.S. 742, 749 (2010) (applying Second Amendment to the States).

2. **Explaining Factual/Legal Context**:

   De Long v. Hennessey, 912 F.2d 1144, 1147 (9th Cir. 1990) (remanding pre-filing injunction for failure to show that filings were numerous or abusive).

3. **Using a Group of Cases**:

   United States v. Chiu, 109 F.3d 624 (9th Cir. 1997) (proffer agreements); *United States v. Partida-Parra*, 859 F.2d 629 (9th Cir. 1988) (plea agreements).

E. Parenthetical Pitfalls

1. **Not a Substitute for Analysis**: Parentheticals communicate basic information but do not explain the relationship of law to your facts. If a source is central to your argument, discuss it in main text.
2. **Can Interrupt Flow**: Read aloud. If parentheticals disrupt momentum, integrate information into main text.
3. **May Be Ignored**: Busy readers may skip parentheticals. Important information belongs in main text.

F. Parenthetical Decision Framework

Before drafting a parenthetical:

1. **Know Your Audience**: Does the reader have parenthetical preferences?
2. **Which Signal?**: Parentheticals are encouraged/required for certain signals.
3. **Source's Role**: If central, discuss in main text. If supporting, parenthetical may suffice.
4. **Clarify or Disrupt?**: Compare versions side by side.

XIV. Client Letters

Client letters translate legal analysis into language non-lawyers understand.

A. Client Letter vs. Memo

Office Memo	Client Letter
Audience: Fellow attorneys	Audience: Non-lawyer client
Technical legal vocabulary	Plain language explanations
Citations in text	Minimal or no citations
Neutral predictive tone	Conversational, empathetic tone
Comprehensive analysis	Focused on client's needs

B. Client Letter Structure

1. **Opening Paragraph**:
    - Thank client for selecting firm
    - Offer pleasantry about health/recovery
    - Use neutral tone (not "Great news!")
    - Let client know you researched applicable law
    - Frame prediction in terms of who court is likely to find liable
    - Bottom-line conclusion with degree of certainty
2. **Background Facts**:
    - Motivate client: remind them you got facts from them
    - Note that errors/omissions could change prediction
    - Frame from client's perspective ("You told me...")
    - Use bullet points (1-2 sentences, max 3 per bullet)

- Chronological order
- Concise, specific, framed so client can confirm/deny/correct

3. **Client Concerns**:
    - Address feelings about litigation
    - Soften language: “you may feel...” not “you believe...”
    - Be careful with “let me assure” (can sound condescending)
4. **Introduction to Law**:
    - Global rule first
    - Standard of proof: explain “preponderance of the evidence” as “more likely than not” (greater than 50% likelihood)
    - Sub-rules with lay explanations for EACH piece
    - Dispose of uncontested elements
    - Define legal terms (affirmative act, but-for cause, causation, etc.)
5. **Application**:
    - Avoid ping-ponging between parties
    - Apply ALL parts of sub-rule to primary defendant first
    - Then apply as needed to secondary parties
    - Address third-party contribution (client will wonder)
    - Finish explaining ALL law before starting application
6. **Options**:
    - At least two options
    - Honest assessment/reality check
    - Pros and cons from client’s perspective
    - Talk numbers (costs, likelihood of recovery)

- Don't recommend frivolous suits

7. **Next Steps**:
    - Collect bills/documentation
    - Forward contact information
    - Who will call whom? By when?
    - Do NOT direct client to talk to other witnesses
    - Be logical and specific

C. Client-Friendly Language

If you use a term your client may not be familiar with, explain it immediately.

Terms Requiring Explanation:

- Negate
- Sub-rule
- Statute
- Affirmative Act
- But-for cause
- Causation
- Natural and Continuous Sequence of Events (NCSE)
- Preponderance of the evidence

Example:

> Under Florida law, you must prove each element by a "preponderance of the evidence." This means the court or

jury must find there is a greater than 50% likelihood that your claim is true, in other words, more likely than not.

D. Client Letter Formatting

- Script font for signature: acceptable
- Firm logo: acceptable
- Page numbers: bottom-center or as firm requires
- Date: No ordinal suffix (October 22, 2022 NOT October 22nd, 2022)
- Don't abbreviate "Street"
- Blank line after greeting
- Left-justification

E. Tone Considerations

- Less "telling us what you will do", more "just do it"
- Soften client characterizations
- Don't offer to sue unless meritorious
- Discuss fairness considerations courts addressed
- Be candid but empathetic given client's concerns

XV. Common Errors and Solutions

This section consolidates errors from grading feedback with specific solutions.

A. Question Presented Errors

Error	Solution
Missing key trigger facts	Include trigger facts for BOTH contested elements; add characteristics (“bicycling enthusiast who has experience...”)
Using client names	Use descriptive roles, not names
Improper tense	Use present tense for the legal question itself
Missing essential information	Ensure all facts the analysis depends on are included

B. Brief Answer Errors

Error	Solution
Addressing only one contested element	Address BOTH contested elements
Missing degree of certainty	Include “likely,” “probably,” “may” in first sentence
Not parallel to QP	Mirror the QP structure; answer the question asked
Using client names	Use descriptive roles, not names
Including citations	No citations necessary in BA

C. Statement of Facts Errors

Error	Solution
Using present tense	Use past tense for past events
Missing key trigger facts	Include ALL facts that appear in analysis; give full range of figures
Assuming facts not in record	Do not assume (e.g., no reason to believe prior criminal history); state unknowns at end
Factual mistakes	Be precise; verify details (not “greyhounds” if dogs were Great Danes)
Including irrelevant facts	Include only legally significant facts
Not saying where facts came from	State source (“According to our client...”; “The police report indicates...”)

D. Introductory Roadmap Errors

Error	Solution
Missing case law citation	Cite case law in Introductory Roadmap
No global rule stated	Include governing rule with citation
Not disposing of uncontested elements	Show why they are uncontested using available facts
Focusing on only one contested issue	Address both contested issues

E. Point Heading Errors

Error	Solution
Addressing multiple elements	Focus on only ONE contested element per heading
Missing degree of certainty	Include “likely,” “probably,” etc.
Missing reasoning or trigger facts	Include “because [law] + [key trigger facts when/where]”
More than three lines	Keep to single sentence, maximum three lines
Not in sentence case	Use sentence case, not title case

F. Rule Statement Errors

Error	Solution
Using degree of certainty in rule	State rules without hedging; certainty belongs in conclusions
Misstating the rule	State rules so they apply to future cases; don't mix rule and holding mid-sentence
Rules too tentative	Make rules less tentative; work on flow and transitions
Mentioning client	Keep Rule section in "client-free zone"
Missing citations	Cite authority for each rule statement

G. Case Illustration Errors

Error	Solution
Too tight in first paragraph	Expand for clarity; work on sentence structure
Poor final sentence structure	Revise final case illustration sentence for flow
Using present tense	Use past tense throughout case illustrations
Using proper names	Use labels or real-world roles (buyer, driver, dog owner)
Using case roles	Avoid "Petitioner," "Appellant", use descriptive roles
Including irrelevant facts	Include only triggering story facts and key procedural facts
Not tracking all parts of rule	Holding must track ALL parts of the rule stated

H. Application Errors

Error	Solution
Just repeating precedent facts	Set up explicit comparison: "Just like the buyer in *Lancaster* who..., here, Walcott..."
Not running the numbers	Run numbers explicitly ("27% in *Townsley* vs. 75% here")
Missing counter-argument	Address specific counter-arguments with facts
Using "here" ambiguously	"Here" should clearly refer to your case, not precedent
Not reincorporating client facts	Bring client facts back into application; don't rely on reader's memory
Missing "why"	Explain legal significance: "Therefore, Walcott's conduct is insufficient to prove..."

I. Conclusion Errors

Error	Solution
Framing in terms of appellate reversal	Frame in terms of whether client can be convicted/held liable
Missing degree of certainty	Include "likely," "probably," or "may"
Too verbose in final memo conclusion	Keep succinct; bottom-line only
Telling attorney what to do	Suggest or draw attention; don't direct

XVI. Upper-Level and Scholarly Writing

For seminar papers, law review articles, and scholarly projects, additional considerations apply.

A. Thesis Development

Thesis Statement Checklist:

- Does it pass the “so what” test?
- Is it useful to your intended audience?
- Is it easily identifiable?
- Is it manageable/defendable?
- Can you articulate in 2 minutes how you will defend it?
- Has your thesis been preempted by others?
- Have you reassessed your thesis based on research?

B. Common First Draft Challenges

Shallow Draft: Says too much and too little simultaneously (skimming surface on many issues, not engaging deeply on any).

Solution: Narrow your scope. Ask what you can uniquely offer the reader. Drill down on a subpart; evaluate policy implications deeply.

Organizing Content: Present ideas coherently with explicit logical connections.

Solution: Talk through logic with others. Reverse outline your draft (comment bubble per paragraph summarizing its point). Move from old information to new information.

Transitions: Without transitions, readers must draw their own conclusions or become confused.

Solution: Write conversationally. Use thesis elements in topic sentences. Test: read only topic sentences, you should follow the thread logically.

Extensive Case Descriptions: Reader feels bogged down by case details.

Solution: Synthesize principles from key cases. Your value-added is finding fresh connections among old ideas.

Over-Reliance on Quotes: Long quotes suggest incomplete understanding or laziness.

Solution: Paraphrase. Excerpt only the most essential language. Read critically before writing.

Lack of Confidence with Counter-Arguments: Presenting solution, then undermining it.

Solution: Acknowledge counter-arguments while advocating for your proposal. Use logos (logical appeal), pathos (emotional appeal), and ethos (credibility) to turn negatives into positives.

Insufficient Support: Every sentence needs a footnote (background) or citation (analysis).

Solution: Keep a master document of sources. Work on Bluebooking when tired of writing.

C. Second Draft Sentence-Level Challenges

1. **Redundancy**: Each paragraph should present a separate idea; each sentence a separate point.
2. **Categorical/Exaggerated Assertions**: Never use “never”; always avoid “always”; “clearly” is a loser.
3. **Vague Criticisms**: Don’t just say “slippery slope” or “chilling effect”, explain why and how.
4. **Throw-Away Phrases**: Delete: “It should be noted that,” “I would argue that,” “It is obvious that,” “To tell the truth.”
5. **Wordiness**: Use concise alternatives. See Appendix B for comprehensive list.

D. Scholarly Writing Rubric Elements

Introduction:

- Hook that captures reader’s interest
- Articulates thesis and scope
- Provides roadmap of major sections

Thesis:

- Novel, not obvious, useful to audience
- Clear, logical, sustained throughout
- Makes connections to broader issues without tangents

Analysis:

- Analyzes facts, statutes, cases, policies effectively
- Synthesizes rather than merely summarizes
- Tests thesis viability using actual facts
- Addresses counter-arguments and trade-offs

Organization:

- Logical structure with proper proportion
- Effective transitions between sections
- Informative roadmaps and headers
- Coherent paragraphs with topic sentences

Style and Polish:

- Clear, concise, rhetorically effective
- Meticulously proofread
- Fluid and sophisticated
- Professional tone (avoid idioms, colloquialisms)

XVII. Professional Communication

A. Professional Emails

Structure:

1. Subject line: Clear identification of matter and purpose
2. Greeting: Professional ("Dear [Name]," or "[Name],")
3. Opening: State purpose in first sentence
4. Body: Organized with short paragraphs or bullets
5. Closing: Clear next steps
6. Signature: Professional signature block

Tone:

- Professional but conversational
- Avoid overly casual language
- Proofread carefully

B. Formatting Across Documents

Standard Memo Format:

- Times New Roman, 14-point font
- 1-inch margins all sides
- Double-spaced, no extra spacing between paragraphs
- Two spaces between sentences
- Left-justified (ragged right margin)
- Page numbers centered at bottom (skip page 1, start with page 2)
- First line of each paragraph indented

Point Heading Placement: If a point heading lands at the end of a page, or if there are not two full lines of text beneath it, move the heading to the next page.

XVIII. Self-Review Protocols

A. Pre-Submission Checklist

Structure:

- ☐ Caption complete (To/From/Date/Re)
- ☐ QP uses under/does/when format OR statements + question
- ☐ QP includes trigger facts for BOTH contested elements
- ☐ QP does NOT use client names
- ☐ BA addresses BOTH contested elements with degree of certainty
- ☐ BA is parallel to QP
- ☐ SOF uses past tense for past events
- ☐ SOF includes ALL facts from analysis
- ☐ SOF states unknowns at end
- ☐ Introductory Roadmap cites case law
- ☐ Roadmap disposes of uncontested elements
- ☐ Point headings address ONE element each
- ☐ Point headings include degree of certainty + reasoning + trigger facts
- ☐ Each CREAC complete (C-R-E-A-C)

Rules and Citations:

- ☐ Every rule statement has citation
- ☐ Rules stated without hedging (no degree of certainty in rules themselves)
- ☐ Rules can apply to future cases

- ☐ Case illustrations use past tense
- ☐ Case illustrations follow H-FIHR structure
- ☐ Case illustrations avoid proper names and case roles
- ☐ Case illustrations do NOT mention client
- ☐ Holdings track ALL parts of rule
- ☐ At least one fairly full H-FIHR per CREAC
- ☐ Do not directly cite cases you have not read
- ☐ Underline case names (do not italicize) per Florida Rule 9.800
- ☐ Section symbol (ğ) with space before number

Application:

- ☐ Uses PCW format (Point, Comparison, Why)
- ☐ Leads with factual point, not case name
- ☐ Fact-to-fact comparisons explicit (“Just like... here...”)
- ☐ Numbers run for comparison where applicable
- ☐ Client facts reincorporated (not assumed reader remembers)
- ☐ Counter-arguments addressed (if reasonable merit exists)
- ☐ Both sides explained, then resolved
- ☐ “Here” clearly refers to client’s case, not precedent

Conclusions:

- ☐ Each CREAC has robust conclusion (C4)
- ☐ Robust conclusion re-references trigger facts + reasons
- ☐ Degree of certainty consistent throughout
- ☐ Memo conclusion succinct; does not direct attorney
- ☐ Framed in terms of conviction/liability, not appellate reversal

Writing Quality:

- ☐ Active voice predominates
- ☐ No nominalizations where verbs work better
- ☐ Strong paragraphing with topic sentences
- ☐ Transitions guide reader
- ☐ No intrusive elements between subject-verb-object
- ☐ Sentences average under 25 words (20 or fewer preferred)
- ☐ No lawyerisms or inflated language
- ☐ Subject close to verb
- ☐ Proper use of that/which, who/whom
- ☐ Consistent tense
- ☐ No sentence structure errors
- ☐ Defined terms consistent and parallel
- ☐ Uses signposts to help reader process information
- ☐ Fluid writing

Formatting:

- ☐ Maximum page limit observed (typically 8 pages for final memo)
- ☐ 1-inch margins all sides
- ☐ Times New Roman, 14-point font
- ☐ Double-spaced, no extra spacing between paragraphs
- ☐ Two spaces between sentences
- ☐ Left-justified text
- ☐ Page numbers centered at bottom (skip page 1)
- ☐ No identifying information if required for blind grading

B. Read-Aloud Test

Read your memo aloud. Listen for:

- Sentences requiring multiple breaths (too long)
- Awkward phrasing that trips your tongue
- Passive constructions obscuring the actor
- Missing transitions creating jarring shifts
- Parentheticals interrupting flow
- Unclear pronoun references

If you stumble, revise.

C. Self-Review Log

Track patterns across assignments.

Category	Rating (1–10)	Notes for Improvement
Question Presented		
Brief Answer		
Statement of Facts		
Introductory Roadmap		
Point Headings		
Rule Statements		
Case Illustrations		
Fact-to-Fact Application		
Counter-Arguments		
Conclusions		
Citations		
Writing Mechanics		

XIX. Academic Integrity and Professionalism

A. Plagiarism

All work must be your own. You may discuss cases and ideas with classmates; however, you may NOT show your written work product to anyone except your professor and TA.

Ignorance of plagiarism policies is not a defense.

B. Collaboration Limits

Permitted:

- Discussing cases and legal concepts
- Asking questions about assignment requirements
- Sharing research strategies

Prohibited:

- Showing written work to other students
- Making oral statements about wording of rules or sub-rules
- Discussing exam content with other students during exam period

After a specified date (typically after Q&A session), work independently. Continue discussing with TA and professor until 24 hours before deadline.

C. Conference Policy

No conferences within 24 hours prior to assignment due date. This applies to conferences with professors and TAs. Plan ahead.

D. Time Expectations

Expect to spend approximately 2 hours out of class for every 1 hour in class reading, researching, and preparing assignments.

A Sample Memorandum Structure Template

```
M E M O R A N D U M

TO:      [Supervising Attorney]
FROM:    Legal Intern [or your name]
DATE:    [Date - no ordinal suffix]
RE:      [Client Name]; [Matter Number]; [Specific Topic and La

QUESTION PRESENTED

[Under/Does/When format OR Statements + Question]

BRIEF ANSWER

[Direct answer with degree of certainty]. [Governing rule].
[Sub-rules]. [Brief application to key facts addressing both
contested elements].

STATEMENT OF FACTS

[Introduce and label players]. [Chronological presentation
of legally significant facts in past tense]. [Unknowns at end].

DISCUSSION
```

[Introductory Roadmap: Conclusion, global rule with citation, sub-rules, dispose of uncontested elements, refocus on contested elements, conclude if long].

A. [Point Heading for First Contested Element - bold, sentence case, includes degree of certainty + reasoning + trigger fac

[Initial conclusion with degree of certainty - 1 sentence].

[Rule section: fullest statement of sub-rules for this CREAC; all rules before case illustrations; client-free zone].

[Case Illustration using H-FIHR: Hook, Facts, Issue, Holding, Reasoning - past tense; use labels not names; deposit all law you'll need].

[Application using PCW: Point (lead with factual theme), Comparison (fact-to-fact with "Just like... here..."), Why (legal significance)].

[Counter-argument if reasonable merit exists; resolve].

[Robust conclusion: most robust C of CREAC; re-reference trigger facts + reasons; degree of certainty; mini-closing argument].

B. [Point Heading for Second Contested Element]

[Repeat CREAC structure].

CONCLUSION

[Succinct bottom-line with degree of certainty]. [Real-world considerations]. [May suggest; do not direct].

B Plain English Quick Reference

A. Words to Replace

Avoid	Use	Avoid	Use
accede to	grant	in lieu of	instead of
accrue	add, grow	on account of	because
adjacent to	near	provided that	if
approximately	about	pursuant to	under
at present	now	referred to as	called
at that point in time	then	similar to	like
commence	begin	subsequent to	after
concerning the matter of	about	sufficient number of	enough
disseminate	distribute	the manner in which	how
encounter	meet	to the effect that	that
for the purpose of	to	under the circumstances	when, where
for the reason that	because	with regard to	about
in accordance with	by, under	during the course of	during
in favor of	for	in the event that	if
in regard to	about	negatively affect	hurt, harm, decrease

B. Phrases to Eliminate

Delete Entirely	Why
It should be noted that	Filler; just state the information
I would argue that	Filler; just make the argument
It is obvious that	If obvious, don't state it
To tell the truth	Implies you weren't truthful before
I am of the belief that	Just state your position
It is interesting to note that	If interesting, reader will find it so
It is widely understood that	Either cite authority or delete
With a view toward	Unnecessarily wordy
In connection with	Use "about" or be specific
The fact that	Usually unnecessary

C. Nominalization Fixes

Nominalization	Strong Verb
make a decision	decide
conduct an investigation	investigate
perform an analysis	analyze
reach a conclusion	conclude
make a determination	determine
give consideration to	consider
make reference to	refer to
have knowledge of	know
is dependent upon	depends on
make a modification	modify
is applicable	applies
effectuate service	serve

D. Transition Quick Reference

Function	Options (Prefer short, simple ones in bold)
Add	**and, also**, too, besides, moreover, furthermore, in addition
Contrast	**but, yet, still**, however, on the other hand, nevertheless, in contrast
Cause/Effect	**so, because**, therefore, thus, consequently, as a result
Example	**for instance, for example, such as**, specifically
Concede	admittedly, granted that, of course, no doubt, to be sure
Sequence	**first, second, next, then, finally**
Summarize	in short, in sum, to summarize, in conclusion
Compare	similarly, likewise, in the same way
Restate	in other words, that is

E. Capitalization Rules

- Capitalize “Court” only when:
  - Naming a court in full (“the United States Supreme Court”)
  - Referring to the U.S. Supreme Court
  - Referring to a court that will receive your document (appearing before that court)
- Do NOT capitalize “court” in general references
- Do NOT capitalize “judge” unless part of title (“Judge Smith”)

C Key Legal Writing Principles Summary

A. The Grocers Dilemma Lesson

Law school and lawyering is almost always about the limes, the ambiguous cases requiring analysis, not the clear-cut situations.

B. Core Analytical Principles

1. **Explain Law BEFORE Applying**: You must explain the law before you apply it to your case.
2. **Synthesize the Governing Law**: Combine the authorities into a single, coherent explanation of the law governing your client's case.
3. **Sufficient vs. Necessary**: Courts establish boundaries. Is an element sufficient alone or necessary with others?
4. **Causation Framework**:
    - Actual cause: But-for causation
    - Proximate cause: Foreseeability of type of harm and type of victim
    - Natural and continuous sequence of events (NCSE)
5. **Synthesize Rules**: Create one-sentence rules that predict future cases.
6. **Chart Cases**: Sometimes chart cases by specific element to see patterns.
7. **Foreseeability and Fairness**: Consider policy beyond but-for causation.

C. Writing Process Discipline

1. **Outline First**: Never start writing without an outline.
2. **Reverse Outline**: After drafting, reverse outline to check logic and flow.
3. **Set Time to Worry**: Allocate specific revision time rather than worrying throughout drafting.
4. **Read Context First**: For cases, read the whole opinion for context before extracting rules.
5. **Kill Your Darlings**: Remove favorite phrases if they add nothing.
6. **Write, Revise, Proofread, Then Proofread Again**: Professionalism requires multiple passes.

D. Subject-Specific Approaches

Criminal Law:

- Always show MPC and CL approaches
- Understand burden of proof distinctions
- Address substantive law and social justice considerations

Property Law:

- Give direct answers
- Don’t cite excessively
- Pick one side and defend it
- No IRAC structure; no ping-pong
- Know chain of title chronologically

Constitutional Law:

- Focus on human rights, environment, social issues
- Embrace originalism where applicable
- Direct citation required
- Major premise will always win for majority
- Always consider: text, history, precedent

Torts:

- Element-by-element analysis
- Chart cases by specific element
- Understand causation framework thoroughly

D Resources and Further Reading

A. Required Texts

- Coughlin, Rocklin, and Patrick, *A Lawyer Writes: A Practical Guide to Legal Analysis* (3rd ed.)
- *The Bluebook: A Uniform System of Citation* (21st ed.)
- McKinney and Rose, *Core Grammar for Lawyers* (Online)
- *Interactive Citation Workstation* (LexisNexis)

B. Core Resources

Resource	Description	Use
Richard C. Wydick, *Plain English for Lawyers*	Foundation text on clear legal writing	Core principles; word choice; sentence structure
Bryan A. Garner, *Legal Writing in Plain English*	Comprehensive plain English guide	Advanced techniques; exercises; examples
Ross Guberman, *Point Made*	Persuasive writing from successful briefs	Advocacy; structure; emphasis
Eugene Volokh, *Academic Legal Writing*	Scholarly writing guide	Law review articles; seminar papers
Jessica Clark & Kristen Murray, *Scholarly Writing*	Ideas, examples, execution	Thesis development; research; organization
Elizabeth Fajans & Mary Falk, *Scholarly Writing for Law Students*	Academic writing guide	Structure; analysis; polish
Antonin Scalia & Bryan Garner, *Reading Law*	Statutory interpretation	Textualism; canons of construction
William Eskridge et al., *Cases and Materials on Legislation*	Statutory interpretation	Theories; tools; application
Georgetown Writing Center Handouts	Parentheticals, citations, grammar	Practical guidance on specific topics
Purdue OWL	Online writing resources	Transitions; sentence clarity; grammar

C. Online Resources

- Purdue University Writing Lab: `http://owl.english.purdue.edu`
- UNC Writing Center: `http://writingcenter.unc.edu`
- GW Law Writing Center: `http://www.law.gwu.edu/Academics/EL/Writing%20Center`
- LexisNexis Interactive Citation Workstation: `http://www.lexisnexis.com/lawschool`

D. Writing Improvement Tips

1. **Practice Regularly**: Complete timed writing exercises weekly.
2. **Study Models**: Analyze well-written memos and opinions.
3. **Use Teaching Assistants**: Attend TA office hours (1 participation point per week).
4. **Participate Actively**: Quality in-class contributions (2 points max per class).
5. **Complete Ungraded Assignments**: Timely completion with good faith effort earns participation credit.
6. **Prepare for Conferences**: Preparation earns participation credit.
7. **Read Legal Opinions Actively**: Make party charts; identify rules vs. holdings; note reasoning.
8. **Build a Citation Master Document**: Keep all sources with proper citations; cut and paste when drafting.

9. **Draft in Proper Format**: Use required font/spacing from the start to avoid surprises.

E Detailed CREAC Requirements (Attack Sheet)

This appendix provides comprehensive CREAC requirements from the grading rubric.

A. Point Heading Requirements

- Conclusion as to ONE of the two contested elements
- Single sentence, no more than three lines
- Bold font, sentence case
- Includes:
  - Degree of certainty (“likely,” “probably”)
  - Reasoning (“because [law]”)
  - Key trigger facts (“when [facts], where [facts]”)

Example:

> **Walcott would likely not be shown as disposing of the stolen property because she only attached the bicycle to her car.**

B. CREAC Component Details

C: Initial Conclusion:

- Less robust than C4 (robust conclusion)
- Degree of certainty included
- Stated logically and concisely
- Generally no more than one sentence

R: Rule(s):

- May include governing rule (tighter if already in roadmap)
- Fullest statement of sub-rules for this CREAC
- Give ALL rules here before moving to E
- Clear and concise
- Client-free zone (no mention of client)
- No degree of certainty in rule statements themselves

E: Explanation (Case Illustrations):

- At least one fairly full H-FIHR per CREAC
- May include additional case illustrations, string citations, parentheticals
- Past tense (except rule in hook)
- No proper names (Mr. Bluesky) or case roles (Petitioner)
- Use labels or real-world roles (patron, dog owner, driver, buyer)
- No mention of client
- Treat as bank account: deposit all law you'll use in application

H-FIHR Breakdown:

- **Hook**: Generally use rules (but holdings work per 7.2)
  - Special note: If all law for your CREAC is from ONE case and hook-rule would be identical to CREAC Rule, you may start with facts
  - If CREAC Rule comes from multiple cases, include hook-rules
- **Facts**: May eliminate or tighten procedural facts if not helpful

- **Issue**: May eliminate if tight on space AND holding thoroughly tracks rule
- **Holding**: Track ALL parts of the rule
- **Reasoning**: Look for policy reasoning and case-specific reasoning

A: Application:

- Uses analogical reasoning following PCW format
- **P**oint: Lead with factual point/theme, not by case
- **C**omparison: Fact-to-fact comparison
  - "Just like X in Case ABC, Y happened in our case"
  - "Unlike M in Case 123, L happened in our case"
- **W**hy: Legal significance of comparison
- Uses facts from case illustrations AND client's facts
- Does not assume reader remembers, reincorporates facts
- Organized by element/issue
- Not equal weight to all authorities
- May use rule-based reasoning where analogical not feasible
- Counter-analysis: best argument on other side (only if reasonable merit)
- Explains why court unlikely to adopt counter; resolves with degree of certainty
- Uses the facts throughout

C: Robust Conclusion:

- Most robust C of the CREAC
- Flows logically from R, E, and A

- Located immediately following application
- Degree of certainty
- Mini-closing argument pulling whole CREAC together
- Generally a few sentences
- Re-references trigger facts + conclusion + primary reasons

C. Multiple CREACs

- Include one CREAC for each main contested element
- For trafficking in stolen property: one CREAC for "traffic/endeavor to traffic" element; one CREAC for "knew or should have known" element
- Cases illustrated in CREAC 1 not repeated in full in CREAC 2
- May reference CREAC 1 cases as needed in CREAC 2
- Judgment call: If part of CREAC 1 case applies only to CREAC 2, either:
  - Give full treatment in CREAC 1 to keep illustration together, OR
  - Include only CREAC 1 aspects initially; add tighter second illustration in CREAC 2

F Sample Analysis Excerpts

A. Sample Introductory Roadmap

Yes, Morse is likely to be held liable for carjacking if the State finds that Morse put Jordan in fear and then, by taking the key, committed a carjacking in the same chain of events. Under Florida law section 812.133(1), (3)(b), Florida Statutes (2022), a person is liable for carjacking if the person is found taking a motor vehicle from the person or custody of another, with intent to either permanently or temporarily deprive the owner of the motor vehicle, when during the taking there is the use of force, violence, assault, or putting in fear. An act shall be deemed "in the course of the taking" if it occurs either prior to, contemporaneous with, or after the taking of the property, and if the act and the act of taking constitute a continuous series of acts or events.

If the person does not drive away in the car subject to the taking, the act of taking the keys establishes carjacking. *Price v. State*, 816 So. 2d 738, 741 (Fla. 3d DCA 2002). If the victim has a reason to fear the actor in the carjacking, it is considered putting in fear. *Williams v. State*, 863 So. 2d 1257, 1258 (Fla. 4th DCA 2004).

Here, Morse stated he aimed to "pull up to tonight's party" in the car, thus satisfying the element of intent to

temporarily deprive the owner of the car. The contested elements are whether Morse's conduct shows (1) "taking" under section 812.133 and (2) "putting in fear" sufficient to establish liability.

B. Sample Case Illustration (Full H-FIHR)

If the victim has a reason to fear the actor, it is considered "putting in fear," and the jury would consider evidence of whether a reasonable person would also be in fear. In *Williams*, the victim was inside a vehicle when the attacker approached the car. The attacker did not make verbal threats. The victim testified to feeling frightened. The trial court convicted the attacker of carjacking. On appeal, the attacker argued that without verbal threats, the victim's fear was unreasonable and insufficient to establish the "putting in fear" element. The court affirmed the conviction, holding that verbal threats are not necessary to establish fear when the victim has a reason to fear based on the circumstances. The court reasoned that the jury could properly consider whether a reasonable person in the victim's position would have felt fear, and the victim's testimony of actual fear supported this finding.

C. Sample Application (PCW Format)

Walcott should not be liable for buying and attaching the stolen bicycle to her car. Just like the buyer in *Lancaster* who put the stolen property inside his car, Walcott attached the bicycle to her car. In *Lancaster*, the court did not find that putting stolen property in a personal car was enough to show trafficking. Here, too, Walcott's action of attaching the bicycle to her vehicle is unlikely to establish liability for trafficking.

In *Townsley*, the buyer had sold a car while buying another one well below market price, but was found not liable for trafficking. Just because Walcott sold items obtained for cash before and bought the bicycle below market price, she is similarly unlikely to be shown liable for trafficking.

In *Canady*, the buyer used illegal drugs and cash to purchase stolen items but was found not liable because he did not admit he would dispose of the item. Since Walcott did not expressly admit she would resell the stolen bicycle, she is unlikely to be held liable for intent to dispose of the stolen property.

D. Sample Robust Conclusion

Walcott is likely not liable for dealing in stolen property as to the trafficking element. She did not transfer the

property to another, and just because she sometimes sells similar items does not mean she intended to sell this particular bicycle. The State would have to show that she disposed of or intended to dispose of the property by transferring it to another person. She also did not explicitly admit that she would sell the property; she stated that selling the property is possible if she does not keep it. Her admission must show liability for intent to dispose of the property. Courts require proof of actual disposition or clear intent to dispose, not mere speculation about future possibilities. *Lancaster*, 369 So. 2d at 688; *Townsley*, 443 So. 2d at 1074; *Canady*, 73 So. 3d at 787.

G Exercises for Skill Building

A. Active vs. Passive Voice Exercise

Change these passive sentences to active:

1. An answer must be filed within twenty days after the filing of the complaint.
2. The crime was committed by John Smith, who had formerly been Susan's client.
3. The witnesses were deposed by the employer's attorney.

Answers:

1. The defendant must file an answer within twenty days after the plaintiff files the complaint.
2. John Smith, who had formerly been Susan's client, committed the crime.
3. The employer's attorney deposed the witnesses.

B. Nominalization Exercise

Eliminate nominalizations:

1. Jane will make a decision as to whether she will attend law school.
2. The court's denial of Jane's motion was because it was filed too late.
3. The company made full disclosure of defects in the automobile.

Answers:

1. Jane will decide whether she will attend law school.
2. The court denied Jane's motion because it was filed too late.
3. The company fully disclosed the automobile's defects.

C. Wordiness Exercise

Edit for conciseness:

1. I am writing you in regard to your letter of March 5, 1994.
2. Mary left in an abrupt manner.
3. Each and every person should attend his lectures.

Answers:

1. Regarding your March 5, 1994 letter... [or just begin with substance]
2. Mary left abruptly.
3. Everyone should attend his lectures.

D. Intrusive Elements Exercise

Fix these sentences:

1. This agreement, unless revocation has occurred at an earlier date, will expire on November 1, 2024.
2. A claim, which in the case of negligent misconduct must not exceed $500, and in the case of intentional misconduct must not exceed $1,000, may be filed with the Office of the Administrator by any injured party.

Answers:

1. Unless previously revoked, this agreement will expire on November 1, 2024.
2. Any injured party may file a claim with the Office of the Administrator. A claim must not exceed $500 for negligent misconduct nor $1,000 for intentional misconduct.

E. There/It Construction Exercise

Eliminate wordy constructions:

1. It is obvious that John will win the competition.
2. There are many ways to train a dog.
3. It is probable that it will snow tonight.

Answers:

1. John will win the competition. [If truly obvious, stating so is unnecessary]
2. Many ways exist to train a dog. [Or better: You can train a dog many ways.]
3. Snow is probable tonight. [Or: It will probably snow tonight.]

H Quick Reference Charts

A. Memo Components Checklist

Component	Key Requirements
Caption	TO/FROM/DATE/RE (shoot for one line on RE; use single space if two lines needed)
Question Presented	Under/does/when OR statements + question; legal authority + legal question + key facts; NO names; trigger facts for BOTH elements
Brief Answer	Direct answer + degree of certainty; synthesized rule; brief application; parallel to QP; NO names; NO citations
Statement of Facts	Introduce/label players; ALL trigger facts; past tense; chronological; reads like story; unknowns at end
Intro Roadmap	Conclusion; global rule + citation; sub-rules; dispose of uncontested; refocus on contested; conclude if long
Point Heading	ONE element; degree of certainty + reasoning + trigger facts; bold, sentence case, max 3 lines
CREAC C1	Degree of certainty; logical/concise; generally 1 sentence
CREAC R	Full sub-rules; all rules before E; clear/concise; client-free zone; no hedging
CREAC E	At least one full H-FIHR; past tense; labels not names; no client mention; bank account approach
CREAC A	PCW format; fact-to-fact comparison; reincorporate client facts; counter if reasonable; resolve
CREAC C4	Most robust; re-reference trigger facts + reasons; mini-closing argument; few sentences
Memo Conclusion	Succinct bottom-line; degree of certainty; real-world considerations; may suggest, not direct

B. H-FIHR Quick Reference

Part	Description
Hook	Why case matters; legal principle (rule or holding); use does/under/when
Facts	Triggering story facts + key procedural facts; past tense; may tighten/eliminate procedural if not helpful
Issue	Key legal question court addressed; may eliminate if space tight AND holding tracks rule thoroughly
Holding	Court's answer; track ALL parts of rule; past tense
Reasoning	Why court decided; policy; boundaries; what court rejected; fairness considerations

Mnemonic: Horses Fart In Hot Rooms

C. PCW Application Format

Part	Description
Point	Lead with factual point of comparison or theme sentence (NOT by case name)
Comparison	Fact-to-fact: "Just like [party] in *Case* who [conduct], here, [client] [analogous conduct]"
Why	Legal significance: "In *Case*, court found [X] insufficient; therefore, [client's] similar conduct is insufficient to prove [element]"

D. Causation Framework

Type	Test
Actual Cause	But-for causation: But for defendant's act, would harm have occurred?
Proximate Cause	Foreseeability: Was the type of harm AND type of victim reasonably foreseeable?
NCSE	Natural and continuous sequence of events: Is act in the chain of events leading to damages?
Intervening Causes	Do not negate liability unless overwhelming or superseding

E. Signal Order and Separation

Order of Signals (Bluebook Rule 1.2):

1. No signal, *e.g.*, *accord*, *see*, *see also*, *cf.*
2. *Compare… with*
3. *Contra*, *but see*, *but cf.*
4. *See generally*

Separation:

- Citation sentence: Same family = semicolon; different family = period
- Citation clause: All signals = semicolon

I Formatting Requirements Summary

A. Standard Memo Format

- **Font**: Times New Roman, 14-point
- **Margins**: 1 inch all sides
- **Spacing**: Double-spaced, no extra spacing between paragraphs
- **Alignment**: Left-justified (ragged right margin)
- **Spacing Between Sentences**: Two spaces
- **Indentation**: First line of each paragraph indented; indentation lines up with letter of point heading (A. or B.)
- **Page Numbers**: Centered at bottom; skip page 1, start with page 2
- **Page Limit**: Typically 8 pages maximum for final memo (no exceptions)
- **Case Names**: Underline (do not italicize) per Florida Rule 9.800
- **Section Symbol**: ğ with space before number (ğ 767.01)

B. Citation Format

Follow Florida Rule of Appellate Procedure 9.800. If silent, use Bluebook Blue Pages, then White Pages if needed.

Florida Statute Citation:

> ğ 812.019(1), Fla. Stat. (2022).

Florida Case Citation:

> *Lancaster v. State*, 369 So. 2d 687, 688 (Fla. 1st DCA 1979).

Short Form Citation:

Lancaster, 369 So. 2d at 688.

Id. at 689.

Id.

C. Point Heading Formatting

- Bold font
- Sentence case (only first word capitalized)
- Single sentence
- Maximum three lines
- If lands at page end with fewer than two lines of text below, move to next page

J Conclusion

This handbook provides a comprehensive system for objective legal writing in law school and practice. The process flows sequentially:

1. **Core Principles** (Sections I-II): Six tools for clear writing; grammar essentials; rhetorical triangle.
2. **Reading and Research** (Sections III-V): Active reading strategies; sources of authority; statutory interpretation.
3. **Memo Structure** (Sections VI-VII): Five parts of memo; Question Presented; Brief Answer; Statement of Facts; Introductory Roadmap.
4. **CREAC Analysis** (Sections VIII-XI): Point headings; rules; case illustrations (H-FIHR); application (PCW); conclusions.
5. **Citations** (Sections XII-XIII): When to cite; Bluebook signals; parentheticals.
6. **Client Communication** (Section XIV): Client letters; plain language; empathetic tone.
7. **Error Prevention** (Section XV): Common errors with specific solutions.
8. **Advanced Writing** (Section XVI): Upper-level and scholarly writing considerations.
9. **Professional Standards** (Sections XVII-XIX): Professional communication; self-review protocols; academic integrity.
10. **Subject-Specific Guidance** (Section XX): Criminal law, property, constitutional law, torts approaches.

A. Key Takeaways

- **Audience shapes everything**: Know whether you are writing for a professor (demonstrate reasoning) or a partner (provide answers).
- **Structure before substance**: Outline before drafting; reverse outline to check logic.
- **Explain before applying**: You must explain the law fully before applying it to your client's case.
- **Bank account approach**: Deposit all law in case illustrations that you'll need for application.
- **PCW format**: Lead with point, compare facts, explain why it matters.
- **Degree of certainty**: Include throughout conclusions, not in rule statements.
- **Client-free zones**: Rules and case illustrations should not mention your client.
- **Fact-to-fact comparisons**: Explicit analogies and distinctions with "Just like... here..."
- **Proofread multiple times**: Write, revise, proofread, then proofread again.
- **Active voice and strong verbs**: Agent + action = clear writing.

B. Ongoing Improvement

This resource is open to refinement. Track your progress through self-review logs. Adapt techniques to individual professor preferences and

practice requirements. Consult this handbook at each stage of the writing process:

- **Research phase**: Sections III-V (reading opinions, authority, statutory interpretation)
- **Outlining phase**: Sections VI-VII (memo structure, roadmap)
- **Drafting phase**: Sections VIII-XI (CREAC structure, case illustrations, application)
- **Citation phase**: Sections XII-XIII (Bluebook signals, parentheticals)
- **Revision phase**: Section XV (common errors), Appendix E (exercises)
- **Final review phase**: Section XVIII (self-review protocols, checklists)

With consistent application of these principles, your legal writing will improve measurably.